

Court No. - 1

Case :- WRIT - C No. - 4257 of 2020

Petitioner :- Gyan Chand Bind

Respondent :- State Of U.P. Through Collector/D.M. And 4 Others

Counsel for Petitioner :- Surendra Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Surendra Singh, learned counsel for the petitioner and Sri Anas Mahboob, learned Advocate holding brief of Sri Mahboob Ahmad, learned counsel for the respondent Electricity Department.

By means of this petition under Article 226 of the Constitution, the petitioner has questioned the recovery certificate issued to him. The plea taken is that no procedure, as prescribed for, has been followed to U.P. Electricity Supply Code, 2005.

Learned counsel for the respondent has placed before the Court the inspection report as well as notice of provisional assessment dated 21.05.2019, copy whereof has been supplied to the learned counsel for the petitioner in the Court itself.

In such above view of the matter, we are of the considered opinion that the petitioner should have an opportunity to file his objection to the notice of provisional assessment, as the copy of the same has been handed over to the counsel for the petitioner today itself in the Court and accordingly, we hereby provide petitioner an opportunity to file his objection within a period of three weeks from today. In the event if such objection is filed, as directed herein above, the same shall be considered and disposed of within a further period of four weeks.

Until the disposal of the objection of the petitioner, the recovery citation/ certificate issued already impugned in this petition shall not be pressed into service and shall abide by the modified order of final assessment

Writ petition stands **disposed of**.

Order Date :- 6.2.2020

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(Ajit Kumar,J.) (Ramesh Sinha,J.)